

HOUSE No. 459

The Commonwealth of Massachusetts

PRESENTED BY:

John H. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing podiatric profession's registration and oversight.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 459

By Representative Rogers of Norwood, a petition (accompanied by bill, House, No. 459) of John H. Rogers relative to the board of registration in podiatry within the board of registration in medicine. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing podiatric profession's registration and oversight.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 13 of the General Laws is hereby amended by striking out sections
2 12A to 12C, inclusive, and inserting in place thereof the following sections:-

3 Section 12A. There shall be within the board of registration in medicine a board of
4 registration in podiatry, to be appointed by the governor, in this and in the following two sections
5 called the podiatry board, consisting of five members, citizens of the commonwealth, three of
6 whom shall have had at least seven years of practice in podiatry in this commonwealth. The
7 fourth member shall be a registered physician who shall have had at least seven years of practice
8 in medicine in this commonwealth. The fifth member shall be a representative of the public,
9 subject to the provisions of section nine B. No member of the board shall be connected in any
10 way with a school of podiatry or be financially interested in any manufacturing, wholesale or
11 retail business, pertaining to podiatry in any form whatsoever. As the term of a member expires,
12 his successor shall be appointed by the governor, to serve for five years.

13 Section 12B. The podiatry board shall annually meet in the month of October at such
14 time and place as it shall determine, and shall organize by electing a chairman and secretary, who
15 shall be members of the podiatry board, and who shall hold their respective offices for one year.
16 The podiatry board shall hold at least six additional meetings at such times and places as it shall
17 determine or upon call of the chairman. Three members of the podiatry board shall constitute a
18 quorum for the transaction of business.

19 Section 12C. The members of the podiatry board shall serve without compensation but
20 shall be reimbursed for actual and necessary expenses reasonably incurred in the performances
21 of their duties as members or on behalf of the podiatry board.

22 SECTION 2. Said chapter 13 is further amended by inserting after section 12C the
23 following section:-

24 Section 12D. The board of registration in medicine in consultation with the commissioner
25 of public health may review and approve rules and regulations proposed by the podiatry board.
26 Such regulations will be deemed approved unless disapproved within ninety days of submission
27 to the medicine board provided, however, that any such disapproval shall be in writing setting
28 forth the reasons for such disapproval.

29 SECTION 3. Chapter 112 of the General Laws is hereby amended by striking out section
30 17A and inserting in place thereof the following section:-

31 Section 17A. The board shall keep a full record of its proceedings and a registry of all
32 persons registered by it, which shall be public records and open to inspection. Subject to the
33 provisions of section 12D of chapter 13, the board shall make such rules and regulations as may

be necessary for the proper conduct of its duties. It shall make an annual report, including a statement of the condition of podiatry in the commonwealth.

The board shall investigate all complaints of the violation of any provision of sections thirteen to twenty-two, inclusive, or of section sixty-five relative to podiatry, and report the same to the proper prosecuting officers.

Said chapter 112 is further amended by inserting after section 17B the following Section:-

Section 17C. The board shall promulgate regulations jointly with the board of registration in medicine, and in consultation with the commissioner of public health, to ensure that podiatrists under the board of registration in podiatry are subject to requirements commensurate to those that physicians are subject to under the board of registration in medicine pursuant to section 5 and sections 5A to 5M, inclusive, as they apply to the creation and public dissemination of individual profiles and licensure restrictions, disciplinary actions and reports, claims or reports of malpractice, communication with professional organizations, physical and mental examinations, investigation of complaints and other aspects of professional conduct and discipline.